

(1985) 39 Cal.3d 159, where the “injury-producing event was the failure of custodial authorities to respond significantly to symptoms obviously requiring immediate medical attention.” (*Bird, supra*, 28 Cal.4th at pp. 919-920.) In drawing this distinction, the Court explained that “[s]uch a failure to provide medical assistance, as opposed to a misdiagnosis, unsuccessful treatment, or treatment that turns out to have been inappropriate only in retrospect, is not necessarily hidden from the understanding awareness of a layperson.” (*Id.* at p 920.) Although Plaintiffs argue that the alleged conduct in their amended complaint falls within the former category (see Opp. at 6:18-24), the pleaded facts appear to place the action within the latter category. Plaintiffs’ allegations suggest continued misdiagnosis, unsuccessful treatment, and use of inappropriate treatments of the decedent during his hospitalization rather than a complete failure to diagnose his condition or provide any treatment to him. (*Bird, supra*, 28 Cal.4th at pp. 921 [“In any event, a rule permitting bystanders to sue for NIED on account of unperceived medical errors hidden in a course of treatment cannot be reconciled with *Thing*’s requirement that the plaintiff be aware of the connection between the injury-producing event and the injury.”].)

For these reasons, Defendant’s demurrer to the fourth, fifth, and sixth causes of action for negligent infliction of emotional distress is **sustained**, with leave to amend.

7. Fraud

Defendant demurs to Plaintiffs’ cause of action for fraud on the grounds that it lacks the requisite specificity—that the FAC “does not identify any specific misrepresentation made by defendant Dr. Sandeep Walia, nor does it allege that Dr. Walia personally participated in, authorized, or had any role in the hospital’s advertising, marketing, or public branding activities.” (Dem. at § V(E).) Plaintiffs essentially concede this point in opposition. (Opp. at 12:25-26 [“Plaintiffs concedes that it would strengthen and clarify their claim to plead additional, more specific facts regarding (1) Dr. Walia’s participation in Defendants’ scheme to defraud the public (including Plaintiffs) and/or (2) his individual concealments/misrepresentations made directly to Plaintiffs regarding his/JMH’s qualifications and abilities to competently treat and care for Amin.”].)

The demurrer to the seventh cause of action is **sustained**, with leave to amend.

19. 9:00 AM CASE NUMBER: C25-03121

CASE NAME: JACOB CANALE VS. KELLY BOZARTH

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: BOZARTH, KELLY

TENTATIVE RULING:

Before the Court is Defendants Center for Social Dynamics, LLC, and Kelly Bozarth’s Demurrer to Plaintiff’s Complaint. The Complaint alleges a single cause of action for violation of the Private Attorneys General Act (“PAGA”), California Labor Code § 2698 et seq.

Allegations in the Complaint

Plaintiff was employed by Defendants as an hourly-paid, non-exempt employee from approximately August 2023 to approximately January 2025. (¶ 21.) Defendants also employed other hourly-paid or non-exempt employees during all relevant times (the “other aggrieved employees”). (¶ 20.) Plaintiff and the other aggrieved employees worked over eight hours in a day and/or forty hours in a week during their employment. (¶ 27.)

It is alleged that Defendants failed to compensate Plaintiff and the other aggrieved employees for all hours worked, missed meal periods, or missed rest breaks. (¶ 22.) Plaintiff and the other aggrieved employees also did not receive wages for overtime compensation to which they were entitled (¶ 29), nor did they receive complete and accurate wage statements (¶ 36.)

The Complaint alleges that PAGA claims are allowed for any violation of numerous separate Labor Code violations. It then notes that the PAGA claim is based on nine separate underlying violations related to Defendants failure to: (1) pay overtime; (2) provide meal periods; (3) provide rest periods; (4) pay minimum wages; (5) pay wages upon termination; (6) timely pay wages during employment; (7) provide complete and accurate wage statements; (8) keep complete and accurate payroll records; and (9) reimburse necessary business-related expenses and costs.

Standard of Review

“The function of a demurrer is to test the sufficiency of the complaint as a matter of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint “is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 (“*Doe*”)), but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.)

Legal conclusions are insufficient. (*Id.* at 1098–99; *Doe* at 551, fn. 5.) The Court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.) A demurrer lies only for defects appearing on the face of the complaint or from matters of which the court must or may take judicial notice. (Cal. Code Civ. Proc. § 430.40; *see Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

Analysis

Defendants demur to the entirety of the single cause of action for PAGA violations. They argue that the Complaint fails to state facts sufficient to support a PAGA claim.

Center for Social Dynamics, LLC’s (“CSD”) Demurrer

PAGA “authorizes a representative action only for the purpose of seeking statutory penalties for Labor Code violations.” (*Iskanian v. CLS Transp. Los Angeles, LLC* (2015) 59 Cal.4th 348, 381.) Thus, there

must be an underlying Labor Code violation to state a cause of action under PAGA. (See e.g. *Stone v. Alameda Health System* (2024) 16 Cal.5th 1040, 1076-77 stating that if there is no underlying violation any PAGA claim seeking penalties for such a violation “must also fail.”)

Statutory claims must be pled with particularity. (*Covenant Care, Inc. v. Superior Court* (2004) 32 Cal.4th 771, 790.) “Pleading in the language of the statute is acceptable provided that sufficient facts are pleaded to support the allegations.” (*Blegen v. Superior Court* (1981) 125 Cal.App.3d 959, 963.)

The complaint alleges a single cause of action pursuant to PAGA, though premised on numerous Labor Code violations. If Plaintiff has adequately set forth a single Labor Code violation in the complaint the entire demurrer must be overruled. (See e.g. *Kim v. Reins International California Inc.* (2020) 9 Cal.5th 73, 85 “An employee has PAGA standing if ‘one or more of the alleged violations was committed’ against him,” quoting Labor Code 2699(c), italics added.) Defendant demurred to the single cause of action in its entirety. As framed by Defendant, the only way the demurrer could be sustained is if Plaintiff failed to set forth any Labor Code violation whatsoever.

“If the complaint states a cause of action under any theory ... that aspect of the complaint is good against the demurrer.” (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38.) “To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff’s proof need not be alleged.” (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.)

The Complaint alleges, among other violations, failure to pay overtime wages under Labor Code section 510. (¶ 54.) Labor Code section 510 provides, in pertinent part, that any “work in excess of eight hours in one workday and any work in excess of 40 hours in any one workweek ... shall be compensated at the rate of no less than one and one-half times the regular rate of pay for an employee.” (Labor Code § 510(a).)

The Complaint alleges that “Plaintiff and the other aggrieved employees worked over eight (8) hours in a day and/or forty (40) hours in a week during their employment with Defendants.” (¶ 27.) It also alleges that they were “entitled to receive certain wages for overtime compensation and that they were not receiving wages for overtime compensation.” (¶ 29, see also ¶ 34.) Likewise, “Plaintiff and other aggrieved employees were required to work more than eight (8) hours per day and/or forty (40) hours per week without overtime compensation.” (¶ 40.) The above allegations set forth a Labor Code violation for failing to pay overtime.

Defendant appears to argue that Plaintiff is required to plead specific dates upon which the alleged violations occurred. A “complaint ordinarily is sufficient if it alleges ultimate rather than evidentiary facts.” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550.) “A complaint ... is generally not deficient merely because it fails to describe the particular date when a defendant’s misconduct began.” (*Rojas-Cifuentes v. Superior Court* (2020) 58 Cal.App.5th 1051, 1060.) “It has been consistently held that ‘a plaintiff is required only to set forth the essential facts of his case with reasonable precision and with particularity sufficient to acquaint a defendant with the nature, source and extent of his cause of

action” (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099 “Doheny”) cited with approval by *Doe* 42 Cal.4th at 550.) There is nothing in the PAGA statute that requires a heightened pleading standard.

In addition, the doctrine of ‘less particularity’ provides that “[l]ess particularity [in pleading] is required when it appears that defendant has superior knowledge of the facts, so long as the pleading gives notice of the issues sufficient to enable preparation of a defense.” (*Doe*, supra, 42 Cal.4th at 549-50.) “The particularity required in pleading facts depends on the extent to which the defendant in fairness needs detailed information that can be conveniently provided by the plaintiff; less particularity is required where the defendant may be assumed to have knowledge of the facts equal to that possessed by the plaintiff.” (*Doheny*, supra, 132 Cal.App.4th at 1099.)

Plaintiff has set forth a violation of the Labor Code and has therefore stated a PAGA cause of action. Again, only a single Labor Code violation is necessary to state a PAGA cause of action. Thus, even if Defendant’s were correct that Plaintiff has failed to allege any other Labor Code violations, Plaintiff has still alleged a PAGA cause of action. Indeed, a “demurrer cannot rightfully be sustained to a part of a cause of action or to a particular type of damage or remedy.” (*Kong v. City of Hawaiian Gardens Redevelopment Agency* (2002) 108 Cal.App.4th 1028, 1047.)

Kelly Bozarth’s Demurrer

The specific allegations regarding Ms. Bozarth are quite limited. It is alleged that Ms. Bozarth “was acting either individually or as an officer, owner, director, agent, or employee of” CSD and that she “caused and continues to cause all of the wage and hour violations” alleged in the Complaint. (¶ 7.) All acts alleged were committed with her “ratification, knowledge, permission, encouragement, authorization, and/or consent.” (¶ 9.)

An individual cannot be personally liable under Labor Code section 558.1 “simply by virtue of his or her status as an owner, director or officer but must have been ‘personally involved’ in the alleged violations’ or ‘engaged in ‘individual wrongdoing.’” (*Espinoza v. Hepta Run, Inc.* (2022) 74 Cal.App.5th 44, 59.) In other words, an “individual must have engaged in some affirmative action beyond his or her status as an owner, officer or director of the corporation.” (*Ibid.*)

Statutory claims must be pled with particularity. (*Covenant Care, Inc.*, supra, 32 Cal.4th at 790.) Here, there are no specific factual allegations describing what Ms. Bozarth allegedly did to violate the Labor Code beyond the vague and unsubstantiated contention that she ‘caused ... all of the wage and hour violations....’ (¶ 7.) In addition, the Complaint is uncertain in that it also alleges that Ms. Bozarth, “at all times herein relevant, was acting either individually or as an officer, owner, director, agent, or employee of” CSD. (¶ 7.) If she were acting ‘individually’ when she acted it is unclear how liability would attach for acts unrelated to her connection to CSD.

Leave to Amend

“Our Supreme Court has observed that where ‘plaintiff has not had an opportunity to amend the

complaint in response to the demurrer, leave to amend is liberally allowed as a matter of fairness, unless the complaint shows on its face that it is incapable of amendment.” (*Eghtesad v. State Farm General Ins. Co.* (2020) 51 Cal.App.5th 406, 412 quoting *City of Stockton v. Superior Court* (2007) 42 Cal.4th 730, 747.)

The Complaint does not show on its face that it is incapable of amendment. As such, Plaintiff is granted leave to amend.

Conclusion

Based on the above, Defendant CSD’s demur is **overruled**. Ms. Bozarth’s demur is **sustained**. Plaintiff is granted leave to amend as to the claims against Ms. Bozarth. Plaintiff shall file an amended complaint within 10 days of notice of entry of this Order.

20. 9:00 AM CASE NUMBER: C25-03121
CASE NAME: JACOB CANALE VS. KELLY BOZARTH
*HEARING ON MOTION IN RE: TO STRIKE PLTFS COMPLAINT
FILED BY: BOZARTH, KELLY
TENTATIVE RULING:

Before the Court is Defendants’ Center for Social Dynamics, LLC, and Kelly Bozarth’s Motion to Strike Plaintiff’s Complaint.

Defendants’ unopposed Request for Judicial Notice is **granted**.

Factual Allegations

See Line 19.

Scope of Motion

Defendants seek to strike two categories of allegations, those related to (1) Plaintiff’s PAGA claim generally, and (2) the claims against Defendant Bozarth. The Court will address each category separately.

Legal Standard

Any party, within the time allowed to respond to a pleading, may serve and file a notice of motion to strike the whole or any part of the pleading. (Code Civ. Proc. § 435 (b)(1); Cal. Rules of Court, Rule 3.1322(b).)

The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of the pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Cal. Code Civ. Proc. §§ 436(a)-(b); *Stafford v. Schultz* (1954) 42 Cal.2d 767, 782 [“matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded”].) An “irrelevant” matter includes allegations not essential to